

Judgment Sheet
**IN THE LAHORE HIGH COURT,
LAHORE.**

JUDICIAL DEPARTMENT

WP No.32552/2015

Mrs. Azra Riaz vs Addl. District Judge & others.

JUDGMENT

Date of hearing	03.12.2020
Petitioners By	Mr. Anwar Kamal, Senior ASC and Mrs. Anam Iqbal, Advocate.
Respondent No.3 By	Mian Usman Ali, ASC. Mr. Ghulam Abbas Tarar, Advocate.
Respondent No.4 by	Barrister Syed Najaf Hussain Shah, ASC and Ghulam Ali, Advocate.

“Mandamus and certiorari are flowers of paradise and the whole length and breadth of Pakistan is not wide enough to contain their perfume. God fulfills Himself in many ways and that we (Judges) are the humble instruments of His fulfillment. The writ jurisdiction is the modern manifestation of God's pleasure and that God's pleasure dwells in the High Court”.

M. R. Kayani, Chief Justice Lahore High Court (1958-1962) Address to the Karachi Bar Association, 11 December 1958.

JAWAD HASSAN, J. This Judgment will settle and decide the longstanding controversy between the parties, which have seen almost two decades since 2003 and weighed heavily upon the nerves and pockets of the parties before reaching this day. Through this constitutional petition, the Petitioner who is 82 years old widow (aged 65 years at the time of the filing of ejectment petition in 2003) has called in question judgment dated 07.05.2015, passed by learned Additional District Judge, Lahore, whereby he accepted the appeal of

the Respondent No.4 and set aside the order dated 16.12.2009 passed by learned Rent Controller and remanded the case to the learned Rent Controller/Rent Tribunal with the direction to frame specific issues with respect to relationship of landlord and tenant between the parties and decide the ejectment petition afresh after recording evidence of the parties. These at variance judgments have been assailed through this constitutional petition.

I. BRIEF FACTS

2. Facts briefly for the disposal of this petition are that the Petitioner filed ejectment petition under Section 13 of the Punjab Urban Rent Restriction Ordinance, 1959 (the “Ordinance”) against Respondents No.3 and 4 as far back as on 10.07.2003. According to the version of the Petitioner, she made an oral tenancy agreement with Dr. Zafar Iqbal, Respondent No.3 on 01.12.1995 at a monthly rent of Rs.20,000/-, which was agreed to be paid on annual basis but a formal written agreement could not be executed upon the assurance given by the Respondent No.3 that he would vacate the property whenever it would be required by the present Petitioner. The said Respondent No.3 instead of paying the rent on annual basis started paying the same on regular monthly basis, but he thereafter stopped making the payment of rent in the month of April, **1998**. Subsequent thereof, the Respondent No.3 in sheer violation of oral tenancy agreement sublet the demised premises of the Petitioner to Respondent No.4 on his own and without prior permission of the Petitioner, who asked the Respondent No.4 to vacate the premises but he refused to do so. Encountered with this situation, the Petitioner sought ejectment and recovery of arrears of rent by filing ejectment petition against the Respondents No.3 and 4. During the course of proceedings, Dr. Zafar Iqbal, Respondent No.3 the original tenant was proceeded against ex-parte, while the Respondent No.4 filed written reply, wherein he controverted the version of the Petitioner by denying the relationship of landlord and tenant between him and the Petitioner. The Respondent No.4 introduced new fact by maintaining that he was the

tenant of one Munir Barkat, who was owner of the demised premises and he had been making payment of rent to him on regular basis. The said Munir Barkat also filed an application under Order 1 Rule 10 of the Code of Civil Procedure, 1908 (the “CPC”), which was dismissed by the learned Rent Controller on 14.11.2008 due to non-submission of original agreement to sell, the document upon which he relied for substantiating his entitlement on the said premises. Consequently, the learned Rent Controller vide order dated 25.06.2009 held that said Munir Barkat failed to establish that he was owner of the premises which was owned by the present Petitioner and her ownership was based on sale deed, he declared the alleged rent agreement with said Munir Barkat nullity in the eye of law and framed the issues. Subsequently, vide order dated 16.12.2009, the learned Rent Controller accepted the ejectment petition of the Petitioner on the ground of default in payment of rent. Feeling aggrieved, the Respondent No.4 without making the Respondent No.3, the party, filed an appeal before the learned Additional District Judge, Lahore which was allowed and impugned order was set aside and case was remanded to the learned Rent Controller with the direction to frame specific issues regarding the relationship of landlord and tenant between the parties and the ejectment petition be decided afresh after recording evidence of the parties. Hence this petition.

II. ARGUMENTS OF COUNSEL FOR THE PETITIONER.

3. Mr. Anwar Kamal, Sr. ASC, counsel for the Petitioner argued that the Petitioner is an aged widow and mother of Mr. Zahir Riaz, Advocate, Partner Orr, Dignam & Co. (Advocates). He states the Respondent No.1 failed to apply his judicious mind to the fact that due to non-compliance of order under Section 13(6) of the Ordinance dated 25.06.2009 by the Respondent No. 4, the same had attained finality and the Respondent No.4 is liable to vacate the demised premises as he had also shown no lawful justification for non-compliance of order passed by learned Rent Controller; that the version of the Petitioner was supported by her own affidavit alongwith affidavits of her son

Mr. Zahir Riaz, Advocate and Roshdil Khan; that the Respondent No.3 Dr. Zafar Iqbal Sheikh was proceeded against ex-parte, therefore, the case against him stood un-rebutted; that there was stringent and unimpeachable proof on record in form of three un-rebutted affidavits to prove oral tenancy with Respondent No.3; that dismissal of application under Order 1 Rule 10 CPC filed by one Munir Barkat, false claimant of ownership of the demised premises with whom Respondents No. 4 claimed to have executed tenancy agreement was sufficient to establish conclusive proof regarding the ownership of the Petitioner and version of oral tenancy of the Petitioner with Respondent No.3; that the learned Appellate Court erred while coming to the conclusion that it was not just a matter of determining the question of default in payment of rent by Respondent No. 4 but the controversy was concerning the relationship of landlord and tenant between the Petitioner and Respondent No.4; that the Appellate Court failed to draw correct conclusion to the fact that while fixing the tentative rent, the Rent Controller adopted the course of safe administration of justice and fixed much lower amount as rent of the demised premises. The Court directed the Respondent No.4 to deposit arrears and future rent in the Court. Mr. Anwar Kamal, Sr. ASC states that the Respondent No.4 has failed to either challenge that order or to comply with it, thus it has attained finality. Lastly, he prayed for acceptance of the writ petition and setting aside of order of the Respondent No.1.

III. **ARGUMENTS OF COUNSEL FOR RESPONDENT NO.3.**

4. Mian Usman Ali, learned counsel for the Respondent No.3 has argued that the Petitioner is claiming relationship of landlord and tenant with the Respondent No.3 but there is no documentary proof to establish the same; that no evidence produced by the Petitioner to prove her case, titled writ petition has been filed just to avoid the process of law, which is not warranted by law; that to invoke the jurisdiction of a Rent Controller the relationship of landlord and tenant is a condition precedent and in the absence of the same, the

Rent Controller could not assume his jurisdiction. Especially when there is no written agreement between the parties and no evidence has been adduced to prove the relationship; that the learned Rent Controller, Lahore fell in error while entertaining and passing order in the ejectment petition in a slipshod manner as he refused the application of one Munir Barkat under Order 1 Rule 10 of CPC, the rival claimant of ownership of the demised property. To determine the real controversy on the basis of his agreement of lease with the Respondent No. 4 and rent receipts thereof, assumed the existence of relationship of land lord and tenant regarding the property, while no evidence was produced by the Petitioner in her favor; that the Petitioner in the ejectment petition provided his wrong address as 89-F Jail Road, Lahore and succeeded to obtain an ex-parte order dated 08.06.2004 against him, but in writ petition the Petitioner has provided the address of Respondent No.3 as “8-Upper Mall Scheme, Lahore”, which is his actual address; that as and when the Respondent No.3 came to know about the above said ex-parte order, he filed application under Order 9 Rule 13 of CPC to set aside the ex-parte order dated 08.06.2004 before the learned Rent Controller. In support of his contentions the Respondent placed reliance on following case laws:-

- (a) (2001 YLR 2915), (PLJ 2003 Karachi 134), (PLD 1961 (W.P) Lahore 601), (PLD 2003 Karachi 444), (2001 SCMR 1434), (1971 SCMR 82), (1984 SCMR 925) and (1991 SCMR 1376).
- (b) (PLD 1994 Lahore 274) and (1993 CLC 795)
- (c) (PLD 1964 SC 260), (PLD 1966 (W.P) Lahore 939), (1992 CLC 2353), (2005 YLR 2547), (2004 YLR 807) (2001 YLR 231) and (1997 MLD 903)

IV. **Arguments of Counsel for Respondent No.4**

5. Barrister Syed Najaf Hussain Shah, ASC, counsel for the Respondent No.4 argued that the Petitioner and seven others were gifted 5/24th share in the property 89-Jail Road, Lahore, which

approximately become 1 kanal and 14 marlas of land. The share of the Petitioner comes to 4.25 Marlas out of the total 34 Marlas, as per the alleged gift deed registered on 07.03.1981; that the alleged gift deed dated 16.03.1982 does not relate to plot No.89-F which is the subject matter of the petition; that there is nothing on record to show whether the Petitioner represents the remaining seven owners or not, the Petitioner was bound to implead all the co-sharers as a party in the proceedings initiated by her under the Ordinance. The application filed before the Respondent No.2 was bad on account of non-joinder of co-owners. In support of his contention he placed reliance upon MOINUDDIN PARACHA and 6 others vs SIRAJUDDIN PARACHA and 23 others (1993 CLC 1606). He further contended that the Respondent No.4 was put into possession of the subject property on or around 24.04.1997 by one Munir Barkat through a tenancy agreement whereby said Munir Barkat was landlord and the Respondent No.4 was the tenant. Since Munir Barkat was receiving the rent from Respondent No.4, therefore, under Section 2(c) of the Ordinance he was landlord for all material purposes; that the Respondent No.4 neither has any express/implied relationship as tenant with the Petitioner nor with the Respondent No.3. Therefore, in the light of definition of “Tenant” as envisaged in Section 2(i) of the Ordinance, the Respondent No.4 is not a tenant and consequently no eviction proceedings can be taken against him under the Ordinance by the Respondent No.2; He placed reliance upon “SUBEH SADIQ VS Mst. RAJAN through Legal heirs (PLD 2006 Lahore 585) and Dr. SALEEM JAVED and others vs Mst. FAUZIA NASIM and others (2003 SCMR 965) to contend that in absence of a necessary party no effective decree or order can be passed in the suit (appeal) and the suit cannot proceed in the absence of the “Necessary Party”. Lastly, he prayed for dismissal of the writ petition.

6. Arguments heard and record perused.

V. **Determination by the Court.**

7. The Petitioner sought eviction of the Respondents No.3 and 4 by filing an ejectment petition before learned Rent Controller, Lahore on the ground of default in payment of rent. The said ejectment petition was contested by the Respondent No.4 by filing an application for leave to contest wherein he asserted that he is occupant of the premises as tenant but not of the Petitioner rather of one Munir Barkat who was actually owner of the premises, thus ejectment petition is not maintainable against him. On the basis of pleadings of the parties, issues were framed. The learned Rent Controller after hearing arguments and scanning record/documents, allowed the ejectment petition vide order dated 16.12.2009 directed the Respondent No.4 to vacate the demised premises. Feeling aggrieved, the Respondent **No.4**, preferred appeal before the learned Additional District Judge, Lahore, without impleading the actual tenant (the Respondent No.3), which was allowed and impugned order was set aside vide judgment dated 07.05.2015, the case was remanded to the learned Rent Controller for decision afresh after framing additional issues concerning relationship of landlord and tenant between the Petitioner and Respondent No.4.

8. It is reflected from perusal of record that there is no dispute of title inter se the parties rather it is reflected from record that the Petitioner is lawful owner/landlord of Property No.89-F, Jail Road, Lahore on the basis of two registered gift deeds in her favour bearing Document No.3526, Behi No.1, Volume No.369 dated 07.03.1981 and Document No.4178 Vol. No.447 dated 16.03.1982, registered with Sub-Registrar, Lahore Cantt. The tenancy between the Petitioner and Respondent No.3 is based on oral agreement regarding the aforementioned property effected since 01.12.1995 against rent of Rs.20,000/- payable on annual basis. This fact was established by the Petitioner before the Rent Controller through affidavits. The Respondent No.3 had been paying the rent regularly but after April,

1998 he stopped the payment. Thereafter, in the year 1998, the Respondent No.3 sublet the demised property to Respondent No.4 without prior permission of the Petitioner. The original tenant of the Petitioner was Respondent No.3 who sublet the premises to the Respondent No.4 without permission of the Petitioner and admittedly the Respondent No. 4 had not paid any rent to the Petitioner and even if he had been paying the same to the Respondent No.3, he was neither authorized by the Petitioner/lady nor was the owner of the property in question. The rent deed allegedly executed by Respondent No.4 in favor of Munir Barkat was rightly declared as nullity in the eye of law by the Rent Controller, which was never challenged, hence attained the finality.

9. The payment made by the Respondent No.4 to any unauthorized person is not a payment of rent at all for the purposes of tenancy under the Ordinance which he is enjoying without authorization or permission. The mere assertion of the Respondent No.4 cannot make Munir Barkat as landlord of the property, who has no title whatsoever in his favour under the Ordinance and any law. In this view of the matter, the learned Tribunal/Rent Controller has rightly held that the Respondent No.4 though is occupant of the premises of the Petitioner but without her permission, as such he would be liable to pay the arrears of rent, at least from the date when he admitted his occupation on the property in the form of written tenancy agreement with one Munir Barkat. The learned Rent Controller, keeping in view the rent deed allegedly executed by Respondent No.4 in favour of Munir Barkat has rightly determined the yardstick of rent vide order dated 25.06.2009 and determined the payment schedule of rent to which no exception can be taken. The Respondent No.3 with whom the Petitioner had oral tenancy had already been proceeded against ex-parte, therefore, the version of the Petitioner to the extent of original tenant stood un-rebutted. Further, the appeal ought to have been filed by Respondent No.3 but he did not file the same and it was filed by one Nawaz Khan, Respondent No.4,

who had no *locus standi*, therefore, the findings of the lower Appellate Court are not sustainable in the eye of law.

10. From perusal of impugned order it reveals that the learned Appellate Court failed to consider that at one hand the application moved under Order 1 Rule 10 of CPC by one Munir Barkat, the self acclaimed owner of the land without any proof was dismissed and at the same time relied upon the tenancy agreement between the respondent No. 4 and said Munir Barkat as a yardstick to determine the arrears of rent due in favor of the Petitioner. It is observed that the learned Appellate Court has not examined the rationale of order impugned before it and drew a wrong analogy by combining both independent facts, which led to different conclusion. In the ejectment proceedings, the only defense taken by the Respondent No.4 against the claim of Petitioner was that he executed tenancy agreement with Munir Barkat, who as per him, was real owner of the demised premises and thus he paid the rent to him instead of Petitioner. It was imperative upon said Munir Barkat to stand up and guard his title about the demised property but instead of producing the original instrument through which his title to the property was accrued, he failed to prosecute his *lis* and his application under Order 1 Rule 10 CPC was dismissed by the Rent Controller. It is noteworthy that said Munir Barkat did not assail the order of dismissal of his application under Order 1 Rule 10, which has attained finality.

11. With respect to the findings of learned lower Appellate Court that after disregarding the claim to title of demised premises of Munir Barkat, Rent Controller relied upon the alleged tenancy agreement executed between him and Respondent No. 4 as a yardstick to determine arrears of rent, it is observed that it is undisputed fact that Respondent No. 4 is occupying the demised premises as tenant and it is claim of the Petitioner that Respondent No. 3, in whose favor she executed oral tenancy, sublet the premises to Respondent No. 4. However, the Respondent No. 4 claimed that he executed tenancy agreement with Munir Barkat, so it is an admitted fact that

Respondent No.4 is presently occupying the premises as tenant and the date of such occupancy is undeniably admitted from the date of such alleged agreement which he executed with Munir Barkat. It is therefore rightfully taken by Rent Controller as admitted date from which the Respondent No. 4, is occupying the demised premises without the permission of the Petitioner, the landlord, to determine the arrears of rent due against him.

12. So for as the tenancy inter-se the parties is concerned, as per Petitioner, the same was oral. The issue of oral tenancy is already settled by the Hon'ble Supreme Court of Pakistan in **Ahmad Ali alias Ali Ahmad vs Nasar-ud-Din and another** (PLD 2009 SC 453), wherein it has been held as under:-

“In the impugned judgment the High Court has observed that the tenancy had not been created by the written instrument. This Court in case of Shajar Islam v. Muhammad Siddique and 2 others (PLD 2007 SC 45) has laid down that tenancy would not be necessarily created by written instrument in express terms, rather might also be oral and implied. In normal circumstances, in absence of any evidence to the contrary, owner of property by virtue of his title would be presumed to be landlord and person in possession of premises would be considered as tenant under the law.”

Further in **“Shajar Islam vs Muhammad Siddique and 2 others”** (PLD 2007 SC 45) it has been held as under:-

“The determination of the pivotal question related to the legal status of the parties vis-à-vis the premises and the nature of their relationship inter se, would certainly be a mixed question of law and fact to be decided in the light of the evidence. The title of the petitioner is not as such disputed and in absence of any evidence in rebuttal, there would be a strong presumption of existence of tenancy between the parties. This is settled proposition of law that a landlord may not be essentially an owner of the property and ownership may not always be a determining factor to establish the relationship of landlord and tenant between the parties. However, in the normal circumstances in absence of any evidence to the contrary, the owner of the property by virtue of his title

is presumed to be the landlord and the person in possession of the premises is considered as tenant under the law or the tenancy may not be necessarily created by a written instrument in express terms rather may also be oral and implied.”

13. In view of the above, it is established that a tenancy may not necessarily be created through a written document and the same might be an outcome of oral agreement. In such a situation, the owner of the property shall be presumed and taken as landlord and the occupier of the same who is not owner of the premises as tenant and this general principle can only be rebutted if a contesting claimant came up with a declaration of competent court of law declaring him to be owner of the property. It is also worth mentioning that the Punjab Rented Premises Act, 2009 (the “Act”), which substituted Punjab Urban Rent Restriction Ordinance, 1959 also does not debar entertainment of ejectment petition in case of oral tenancy. The palpable object of the law is to compel the parties to enter into a tenancy agreement within the purview and scope of the provisions of sections 5, 6 and 7 of the Act. Therefore, a penalty has been provided by the law for the breach of the obligations, envisaged thereby, in that, where the tenancy agreement is not so entered and registered and a landlord or the tenant approaches the Tribunal for the enforcement of his right(s) under the Act, he has to pay a fine. Non-registration of rent agreement or oral tenancy is an irregularity that entails penal consequences. The said petition can be entertained subject to payment of fine as enshrined in Section 9 of Act. Reliance is placed on **Abdul Hamid Jalib vs Addl. District Judge, Lahore (P L D 2013 Supreme Court 775)**.

14. It is also a settled principle of law that once a tenant is always a tenant. During the subsistence of tenancy, tenant has no right to challenge the title of landlord. It is a settled proposition of law that a landlord may not be essentially an owner of the property and ownership may not always be a determining factor to establish the relationship of landlord and tenant between the parties. However, in

the normal circumstances in absence of any evidence to the contrary, the owner of the property by virtue of his title is presumed to be the landlord and the person in possession of the premises is considered as tenant under the law. Reliance is placed on **(P L D 2009 S C 453)** and **(P L D 2007 S C 45)**. Once relationship of tenancy is proved; at once Article 115 of Qanoon-e-Shahadat Order, 1984 (the “Order”) will come into play as has been held in **(PLD 2006 Supreme Court 549)**. The principle underlying Article 115 of the Order, was considered at great length in the Privy Council case “Kumar Krishna Prosad Lal Singha Deo” besides, the following judgments;

“Ahman Shah Muhammad v. Emperor (**AIR 1937 Lahore 243**),

Krupasighu Routra and another v. Purna Chandra Misra and others (**AIR 1973 Orissa 44**), Muhammad Anwer through his legal representatives v. Abdul Shakoor (**1982 SCMR 1120**), Messrs Muhammad Ismail & Bros. V. Malik Muhammad Tahir and others (**1981 SCMR 139**), Ismail Brothers v. Keval Ram (**PLD 1981 SC 545**)”.

15. Further, a tenant cannot deny the title of the landlord and cannot challenge the same, unless he is a rival claimant himself, and in such case he must seek a declaration of the competent court to that effect. Otherwise a tenant has no right to dispute the title of the property as it is a matter beyond his capacity and legal concern as he is a tenant of the property, whose right to remain occupant of that property is solely subject to the payment of rent to the landlord as agreed vide tenancy agreement. The person who is having title deeds of the property in his/her favor, in all cases be deemed as landlord for the purposes of tenancy unless contrary is established through a decree of the court or through other legal instrument and a tenant cannot voice suspicions to the title of landlord or raise excuses for refusal of payment of rent on the pretext of doubt in the title of the landlord. This Court in the case of ASGHAR ALI VERSUS TANVIR AHMAD AND OTHERS

(2018 M L D 1231) has already held that

“It is a settled principle of law that once a tenant is always a tenant. During the subsistence of tenancy, tenant has no right to challenge the title of landlord. It is a settled proposition of law that a landlord may not be essentially an owner of the property and ownership may not always be a determining factor to establish the relationship of landlord and tenant between the parties. However, in the normal circumstances in absence of any evidence to the contrary, the owner of the property by virtue of his title is presumed to be the landlord and the person in possession of the premises is considered as tenant”.

In the case of SARFRAZ VERSUS MUKHTAR AHMED AND OTHERS (2016 C L C Note 48), this Court has also held that;

“If an alleged tenant is allowed to deny the relationship of landlord and tenant without having any proof of title of the disputed property in his favour, then it will be very easy for any person, who takes over a property as a tenant and fails to pay the rent to the landlord/owner, to deny the relationship of landlord and tenant”.

16. In view of the above, there exists no valid ground and justification for learned lower Appellate Court to remand the case to the Rent Controller when the title of the Petitioner qua the property in dispute was clear and unchallenged in all respects. Reliance in this respect is placed upon case titled “Mst. ZARINA KHAN VS Mst. FARZANA SHOAIB” (2017 SCMR 330) wherein it was held as under:-

“Rent Controller was not required to have first framed the issue of relationship of landlord and tenant in such circumstances before ordering the tenant to vacate the rented premises. Ejectment order passed by Rent Controller was maintained.”

It has been further held in the said judgment as under:-

“When a person inducted in the rented premises subsequently denied his/her status as tenant, it was not a rule of thumb that the Rent Controller was bound to

first frame point for determination/issue to such effect and decide it before passing a rent order to secure the interest of the landlord during the pendency of such proceedings.”

17. The Constitutional Jurisdiction of High Court is not an alternative to right of appeal or revision provided under the law rather it is a safeguard against the arbitrary decisions, wrong and mistaken conclusion drawn by lower judicial forums or executive agencies against which no alternate remedy is provided by the law, in order to ensure that justice must be administered in the very manner as intended by law. The writ jurisdiction of this Court has always been there and shall continue to come at the rescue of those citizens of the country who have no alternate and efficacious remedy available to them.

18. The Constitution of Islamic Republic of Pakistan, 1973 imposed a duty upon the High Court being custodian of law for administering justice to rectify and amend a wrong order or a mistaken conclusion of lower appellate court while exercising Jurisdiction under Article 199 of the Constitution. In DILAWAR JAN V. GUL REHMAN AND 5 OTHERS (PLD 2001 Supreme Court 149), the Hon'ble Supreme Court of Pakistan has also laid down the similar principle while holding that:-

"...we are conscious of the fact that the learned High Court in exercise of Constitutional jurisdiction cannot sit as a Court of appeal but where order passed by Court, suffers from any jurisdictional defect or violates any provision of law, invocation of Constitutional jurisdiction would be justified and if the error is so glaring and patent that it may not be acceptable that in such an eventuality the High Courts have interfered when finding is based on insufficient evidence, misreading of evidence, non-consideration of material evidence, erroneous assumption of fact, patent errors of law, consideration of inadmissible evidence, excess or abuse of jurisdiction, arbitrary exercise of power and where unreasonable view on evidence has been taken..."

19. Similarly, in MUHAMMAD LEHRASAB KHAN V. MST. AQEEL-UN-NISA AND 5 OTHERS (2001 SCMR 338), it was also held by the Hon'ble Supreme Court that in rent matters and in appropriate cases, the High Court while exercising constitutional jurisdiction can reverse the findings of the District Court being final appellate court, if it is against the material on record. It was observed by the Court that;

“there is cavil with the proposition that ordinarily the High Court in its Constitutional jurisdiction would not undertake to reappraise the evidence in rent matters to disturb the finding of facts but it would certainly interfere if such findings are found to be based on non-reading or misreading of evidence, erroneous assumptions of facts, misapplication of law, excess of abuse of jurisdiction and arbitrary exercise of powers. In appropriate cases of special jurisdiction, where the District Court is the final Appellate Court, if it reverses the finding of the trial Court on the grounds not supported by material on record, the High Court can interfere with it by issuing writ of certiorari to correct the wrong committed by the Appellate Authority. Reference can be made to Rahim Shah v. Chief Election Commissioner (PLD 1973 SC 24), Lal Din Masih v. Sakina Jan (1985 SCMR 1972), Muhammad Hayat v. Sh. Bashir Ahmad and others (1988 SCMR 193), Abdul Hamid v. Ghulam Rasul (1988 SCMR 401) and Assistant Collector v. Al-Razak Synthetic (Pvt.) Ltd. (1998 SCMR 2514).”

Likewise, this Court in SHAFQAQ AQEEL VERSUS SHAFQAT ALI AMJAD AND OTHERS (2015 M L D 987) while allowing constitutional petition and setting aside the appellate order passed by Court of District Judge against the order of Rent Tribunal also came to the similar conclusion that if *“the courts below have grossly misread the evidence available on record and, therefore, this calls for this Court to interfere in its Constitutional jurisdiction in order to avoid miscarriage of justice.”*

20. In view of the above, the instant writ petition is allowed and impugned order dated 07.05.2015 passed by the Respondent No.1 is set aside and order passed by the Rent Controller, Respondent No.2 is

upheld. The Respondent No.4 is directed to handover vacant possession of the demised premises to the Petitioner within a fortnight positively and pay the arrears of rent as determined and assessed by Rent Controller/Rent Tribunal.

(JAWAD HASSAN)
JUDGE

ZAHOOR